

taking up the cause." Sharma says he pointed out to the Court that the vegetation of the plains was increasingly seen on the hills, indicating a threat to the eco-system. Earlier, the government had decided that no construction was to be permitted around Naqqi lake, the biggest attraction of the hill station. This order as well as a 1994 Rajasthan High Court order continued to be violated until the matter was taken up before the apex court. What followed was the "no further construction" order. This ban was to remain in force until Mount Abu was declared an eco-sensitive zone—it came only in June 2009, but violations continued. What helped corrupt officials was that the Court had allowed renovations and repairs within the same plinth level and area. What this meant was that residents had to seek permission even for repairs of pipelines and painting of walls and issues like whether to allow replacement of a fibre or tin shed became contentious. Fears of a total ban further pushed large-scale violations that were rampant during election times when administration tends to become lax. As the town goes to local bodies' polls later this month, there is again a spurt in such activity. It comes at a price though. Often to be paid

movement of vehicles carrying construction material into Mount Abu which a court later removed citing the fundamental right to work. Officials did not have anything to fear; only the people who were classified violators did. "First they paid to let them construct in excess, then they paid the same people

ing the Mount Abu Development Committee. Sub-divisional Magistrate Vishnu Charan Mallik admits that even beyond existing lists, he has been able to identify more and more violations and only half of these have been demolished. There have also been instances of encroachments where people went



RATAN DEVASI, an MLA from neighbouring constituency Raniwara who has properties and hotels in Mount Abu, says locals were made to pay bribes even for minor alterations while the influential lot, mostly outsiders, bought properties and carried out massive constructions with no trouble.

System Failure

- In 2002, the Supreme Court banned construction in Mt Abu.
- It spurred illegal building activity before the law came into force.
- 92 officials were held guilty but very little action was taken.
- 600 cases of violation have been recorded and the surge in illegal building continues.

ANIL DHAWAN, the manager of Karnavati Hotel, says the hotel's new ceiling has been demolished although he has the permission for it. Demolition staff came thrice to demolish it in stages. He says he is not being allowed to demolish and rebuild his own 80-year-old house.



twice and in some cases even more. Anil Dhawan, manager of Karnavati Hotel, says laying of a concrete ceiling in place of a shed was viewed as a violation and demolition parties have come thrice to break it down.

A single sentence order could not have been exploited in a manner worse than it was, irrespective of whether the BJP or Congress was in power. Once the authorities even banned the entry and

to not demolish it," says a bitter Sharma, who was a member of a Repairs and Renovation Committee set up to give approvals. He now refuses to divulge the names of violators even off the record, or be photographed.

If a lot many went ahead with violations, the government all these years did nothing to get waivers for building public facilities, schools and dispensaries, despite the chief minister head-

to court, lost the case but local authorities still did not remove those, he says.

There is no clarity over whether a new monitoring committee, which will be able to allow new constructions, will be able to regularise earlier violations of the Supreme Court order which will otherwise be valid according to the new provisions. There is one view that such violations made in a residential area and used only for residential purposes be allowed, and those in the commercial sector be demolished. But any such move may open a Pandora's box. The chaos will carry on for some more years before a master plan is put in place. The plan proposes a ropeway, trekking routes through forest, camping sites, new dams and watchtowers but is yet to propose developing residential and commercial areas.

During all this turmoil, crucial issues, like drinking water scarcity, have been sidelined. In September, boating had to be stopped in the picturesque Naqqi lake because of low water levels. The Salgaon dam project that is meant to provide drinking water to the hill town has been lying in abeyance for three decades over the issue of acquisition of less than 100-acre land. While committees struggle to find the balance between the environment and development, yet another hill station is heading downhill, victim of greed, official apathy and corruption. ■